Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 02/19/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Collins – Trust 01430606	**TENTATIVE RULING** **Case:** Collins – Trust 01430606 **Date:** 02/20/26 --- **MOTION FOR PROTECTIVE ORDER (ROA 77)** On December 10, 2025, the motion by Petitioner Guy Collins ("Petitioner") for an order compelling nonparty Joseph E. Collins ("Nonparty Deponent") to attend his deposition came before the court. The court denied the motion because the Nonparty Deponent had not been served with a deposition subpoena. (ROA 97.) The court also advanced the hearing on the instant motion for protective order filed by the Nonparty Deponent. (*Id.*) The Nonparty Deponent moves for a protective order prohibiting Petitioner from taking his deposition on the ground that he lacks mental capacity. (ROA 77.) The court does not find the evidence submitted in support of this argument persuasive. As evidence in support of the motion for protective order, the Nonparty Deponent submitted a letter from Dr. Caroline Choan, a board-certified Neurologist who indicates in the letter that she "is currently treating" the Nonparty Deponent. (*Id.* at Ex. F.) This letter does not specify what treatment Dr. Choan was providing to the Nonparty Deponent, or for what specific condition Dr. Choan was treating the Nonparty Deponent, other than vaguely referencing the Nonparty Deponent's "neurological conditions." (*Id.*) Dr. Choan states in the letter that the "high-stress situation will affect him [Nonparty Deponent], causing more neurological issues." For purposes of this motion, the court finds such statement vague and unhelpful. Without an understanding of what the Nonparty Deponent's neurological issues are, the court is not in a position to reasonably and accurately evaluate how a deposition might affect such issues. Moreover, accommodations can be made to make the deposition significantly less stressful. The Nonparty Deponent also submitted a declaration from Dr. Choan. It states that she evaluated the Nonparty Deponent, but it does not specify what he was evaluated for. It states that she reviewed test results for an EMG, NCS, and EEG with the Nonparty Deponent, but it does not explain the purpose or significance of the tests taken. Finally, Dr. Choan's declaration states that she has "determined" that the Nonparty Deponent has "substantial deficits" in a list of abilities, but the declaration does not demonstrate how she reached such determinations. To have capacity to testify, a witness needs only the ability to communicate and to know the difference between truth and falsehood. (Evidence Code § 701.) It is one of the lowest forms of capacity, as even young children may testify in court

		and be deposed. Based on the record presented, the court is not persuaded that the Nonparty Deponent lacks testamentary capacity. If the Nonparty Deponent is unable to effectively communicate, that should become readily apparent in the course of the deposition. If Petitioner's counsel determines that he is not getting any meaningful testimony, he can conclude the deposition. Moreover, the Nonparty Deponent can move to exclude his deposition testimony from trial if it appears his testimony was given without capacity. (Evid. Code § 701.) However, at this stage there is a lack of sufficient evidence to prohibit the deposition from taking place altogether. The burden is on the party seeking the protective order to show good cause for whatever order is sought. (*Fairmont Ins. Co. v. Sup.Ct.* (Stendell) (2000) 22 Cal. 4th 245, 255.) It is well settled that "good cause" requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (*Goodman v. Citizens Life & Cas. Ins. Co.* (1967) 253 Cal. App. 2nd 807, 819.) In this case, the Nonparty Deponent's arguments in support of the motion for protective order are aimed at challenging the evidentiary value of the Nonparty Deponent's testimony. The court finds that the Nonparty Deponent has not demonstrated good cause for an order prohibiting the taking of his deposition altogether. Thus, the motion for protective order is **DENIED**. Petitioner previously offered, and the court now **ORDERS**, the following accommodations to be made: the Nonparty Deponent's deposition shall be taken in 2-hour incremental sessions, over multiple, nonconsecutive days. Breaks may be taken as needed at each session. The deposition may take place at Nonparty Deponent's residence or any other agreed upon location. Alternatively, the Nonparty Deponent may elect to be deposed via remote electronic means, which shall then be arranged and paid for by Petitioner. Given the difficulty of personally serving the Nonparty Deponent at his current residence, the court **ORDERS** attorney for the Nonparty Deponent, Michael Wittick, to accept service of the deposition subpoena on behalf of the Nonparty Deponent.
2	Foresman - Trust 01001069	**TENTATIVE RULING** **Case:** Foresman - Trust 01001069 **Date:** 02/20/26 --- **MOTION TO STRIKE OR TAX COSTS (ROA 1396)** Respondent Scott Foresman ("Respondent") moves to strike and tax costs from the memorandum of costs filed on September 24, 2025, by Petitioner Guy Foresman ("Petitioner"). On June 12, 2018, Petitioner filed a trust petition. (ROA 2.) A lengthy trial proceeded, solely on this petition, from December 2024 to June 2025. On September 9, 2025, the court issued a Proposed/Tentative Statement of Decision and Judgment After Trial ("PSOD"). (ROA 1363.)

		On September 24, 2025, Petitioner filed a Memorandum of Costs. (ROA 1379.) On that same date, Petitioner also filed an Objection to the PSOD. (ROA 1381.) As of the date of this ruling, a final judgment has not yet been entered in connection with the above referenced trial relating to ROA 2. A Memorandum of Costs "must" be served and filed "within 15 days ***after*** the date of service of the notice of entry of judgment or dismissal by the clerk … ." (Cal. Rules of Court, rule 3.1700(a)(1), emphasis added.) Accordingly, since judgment has not been entered and there has not been any dismissal, the court finds that the Memorandum of Cost is premature. Based on the foregoing, the motion to strike the Memorandum of Costs in full is **GRANTED**, albeit **without prejudice** to Petitioner's right to timely file a Memorandum of Cost after notice of entry of judgment. If, and when, Petitioner decides to file a new Memorandum of Costs, Petitioner **shall** ensure that any such new Memorandum of Costs seeks to recover only costs incurred in connection with ROA 2 and **shall** include the Memorandum of Costs worksheet (MC-011).
3	McCoy – Elder Abuse 01414287	**TENTATIVE RULING** **Case:** McCoy – Elder Abuse 01414287 **Date:** 02/20/26 --- **MOTION FOR ATTORNEY'S FEES (ROA 34)** Pursuant to Welfare and Institutions Code section 15657.03(t), Respondent Mark McCoy (Respondent) moves for an award of $63,265.00 in attorney's fees and $5,167.65 in costs against Petitioner Barbara McCoy ("Petitioner"). Respondent also seeks an additional "$5,400-$8,250" in connection with bringing this motion and preparing a reply. Respondent's request for judicial notice (ROA 63) is **granted** as to Exhibits 1 and 2. While the court takes judicial notice of certain exhibits as listed above, the court does not take judicial notice of the truths asserted within those exhibits. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCourt* (2001) 91 Cal. App. 4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal. App. 4th 1366, 1375; Evid. Code, §§ 452, subd. (d)(l), (c), (h), 453; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal. App. 4th 256, 264-265; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal. App. 4th 471, 482.) This motion for attorney's fees and costs was filed on September 23, 2024. Shortly thereafter, on November 27, 2024, Petitioner passed away. It is well settled that a "pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc., § 377.21.) Furthermore, the pending action or proceeding may proceed against a personal

representative or successor in interest upon proof of compliance with the creditor's claim procedures. (Code Civ. Proc. § 377.41.)

On September 17, 2025, Michele A. Davis was appointed as Executor of Petitioner's estate. (RJN, Ex. 1.) On September 18, 2025, Respondent timely filed a Creditor's Claim against Petitioner's estate for the full amount of fees and costs sought by the instant motion. (RJN, Ex. 2.) On December 17, 2025, Ms. Davis brought a motion to be substituted into the instant action in place of Petitioner. (ROA 70.) The motion was granted on January 14, 2026. (ROA 75.)

Accordingly, the court proceeds with this motion for fees against Petitioner's estate. Ms. Davis is represented by the same counsel as was Petitioner. Thus, the court deems the opposing papers filed on behalf of Petitioner to be filed on behalf of Petitioner's estate without the need for refiling.

Pursuant to Welfare & Institutions Code section 15657.03(t), the "prevailing party" in a request for an Elder Abuse Restraining Order ("EARO") "may be awarded court costs and attorney's fees, if any." A "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc. § 1032.)

Despite the court's admonishment during the hearing on the request for the EARO that Respondent should not consider the court's ruling in his favor as a "win," Respondent is nonetheless the prevailing party in this action for purposes of Welfare & Institutions Code section 15657.03(t). There are rarely any winners when a mother is asking for a restraining order against her own son. While the circumstances that prompted Petitioner to commence this action are lamentable, the evidence presented to the court did not come close to establishing elder abuse. Thus, the court exercises its discretion to award Respondent prevailing party fees.

Contrary to much of the content in the moving and opposing papers, the court is not interested, at this stage, in relitigating the merits of this case or in re-weighing any evidence presented to the court. The court's focus, consistent with the applicable legal standards and the findings already made by the court, is on determining the reasonable amount of the prevailing party fee award.

It is well settled that the calculation of attorneys' fees is committed to the discretion of the trial court. (*PLCM Group v. Drexler* (2000) 22 Cal. App. 4th 1084, 1095-1096.) The calculation must be based on "a computation of time spent on a case and the reasonable value of that time." For purposes of the calculation, "[t]he reasonable hourly rate is that prevailing in the community for similar work." (*Id.*) The court is not bound by the evidence and argument provided by the party seeking the fees. Under California law, "[t]he court has a duty, independent of any objection, to assure that the amount and mode of payment of attorney fees are fair and proper, and may not simply act as a rubberstamp for the parties' agreement." (*In re Consumer Privacy Cases* (2009) 175 Cal. App. 4th 545, 555.)

The reviewing "courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys

in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426.)

Before reaching its conclusion as detailed in this ruling, the court considered that in this case Respondent's only substantive filings were two judicial council forms: EA-120 Response to Request for Elder or Dependent Adult Abuse Restraining Orders (ROA 12), and EA-800 Receipt for Firearms and Firearm Parts (ROA 15). The evidentiary hearing took less than 11 hours, and 5 exhibits were admitted into evidence. Based on the court's firsthand ability to observe and assess the performance of Respondent's attorneys, the court find that they both did an excellent, professional, and effective job in advocating for Respondent. However, based on the totality of the entire record, and for purposes of calculating the appropriate amount of attorneys' fees to be awarded under Welfare & Institutions Code section 15657.03(t), the court is not persuaded that it was necessary for a team of six attorneys to spend over 125 combined hours on this case. It is well settled that "just as there can be too many cooks in the kitchen, there can be too many lawyers on a case." (*Morris v. Hyundai Motor America* (2019) 41 Cal. App. 5th 24, 38, internal quotation marks omitted, citing *Donahue v. Donahue* (2010) 182 Cal. App. 4th 259, 272 [finding that "simultaneous representation by multiple law firms posed substantial risks of task padding, over-conferencing, attorney stacking (multiple attendance by attorneys at the same court functions), and excessive research"].)

To remedy the above-described billing, the court hereby exercises its discretion to decrease the requested award of attorney's fees by twenty percent (20%). (*Morris v. Hyundai Motor America, supra,* 41 Cal. App. 5th at p. 40.) The court did not arbitrarily reach this 20% reduction rate, rather, the court carefully reviewed the record presented, the performance of Respondent's attorneys as reflected in court during the hearing and in the pleadings filed with the court, as well as the court's own knowledge and familiarity with the legal market, the experience, skill, and reputation of Respondent's attorneys, while also considering the average level of difficulty and complexity of the litigation to which that skill was applied. The court also considered affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc., supra,* 6 Cal. App. 5th 426.)

The court considered all the above listed factors to reach a reasonable, proper, and fair computation of the time spent on the case, and the reasonable value of that time, for purposes of awarding attorneys' fees under Welfare & Institutions Code section 15657.03(t).

Based on the foregoing and all the applicable legal standards, the court **AWARDS** Respondent attorney's fees in the amount of **$50,612** (80% of $63,265).

There is no evidence presented to the court as to the amount of fees incurred in connection with the filing of the instant motion. Thus, Respondent's request for additional fees of "$5,400 - $8,250" is **DENIED**.

Regarding Respondent's request for costs, it is well-settled that a "prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, Rule 3.1700(a)(1).)

The court's records do not reflect the filing of a memorandum of costs by the Respondent. Thus, Respondent's request for costs is **DENIED**.

ORDERS

Ms. Davis, as Executor of Petitioner's Estate, is **ORDERED** to pay attorney's fees in the sum of $29,712 to Godes & Preis, LLP **and** the sum of $20,900 to Heather Brown Law, APC.

Ms. Davis, as Executor of Petitioner's Estate, is **ORDERED** to pay the attorney's fees as directed in this ruling no later than 30 days after the date of service of notice of a final ruling on this motion,